

Court No. - 29

Case :- WRIT - C No. - 26816 of 2013

Petitioner :- Executive Engineer Kanpur Electricity Supply Co.
(Kesco)

Respondent :- The Presiding Officer Consumer Grievances
Red.Forum & Anr.

Petitioner Counsel :- Dr. S.K. Yadav

Hon'ble Sunil Ambwani,J.

Hon'ble Bharat Bhushan,J.

Issue notice to respondent no.2. Steps within a week.

The respondent is granted three weeks' time to file counter affidavit. The petitioner will have one week, thereafter, to file rejoinder affidavit. List on 22nd July, 2013.

It is submitted by Dr. Suman Kumar Yadav appearing for the petitioner that the U.P. Electricity Consumer Grievances Redressal Forum, which had passed the impugned order dated 1.3.2013 did not have jurisdiction to entertain the complaint in as much as the complaint was with regard to assessment, for which the jurisdiction of the forum is excluded. He relies upon Clause 5.0 Jurisdiction of the Forum, which provides that forum shall not entertain the complaint, if it pertains to matters mentioned in Section 126, 127, 128, 135 to 139, 143, 152 and 161 of the Electricity Act, 2003. Except these matters the forum has jurisdiction under Clause 5.2 to take the complaint.

Prima facie we find that under Section 126 of the Electricity Act the disputes relating to assessment are to be decided by the Executive Engineer as Assessment Officer. In the present case there were no dispute of the assessment namely the amount due for consumption of electrical energy recorded in the meter. The complainant-respondent no.2 alleged that meter was disconnected in the year 2000 after the last bill was issued for Rs.3837/- and thereafter vide Receipt No.31446 the connection was permanently disconnected w.e.f. 22.5.2002.

The Forum has held that under Clause 4.38 of the U.P. Electricity Supply Code, 2005 bills could be raised after permanent disconnection only for a maximum period of six months.

The matter requires consideration.

Until further orders, in case the respondent no.2 complies with the direction issued by the Forum and she deposits the arrears upto 22.5.2002 and fixed charges (minimum charges) for the period of six months only after 22.5.2002, for which the department will provide the provisional bill within a month, within next one month, the respondent no.2 will not insisted on recovery of the remaining amount under demand notice dated 15.9.2012 for Rs.1,38,928/-.

Order Date :- 14.5.2013

SP/

Court No. - 40

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And Anr.

Counsel for Petitioner :- Dr. S.K. Yadav

Hon'ble Siddhartha Varma,J.

Hon'ble Ajit Singh,J.

List has been revised. No one appears on behalf of the petitioner.

The writ petition is dismissed for want of prosecution. Interim order, if any, stands vacated.

Order Date :- 29.9.2022

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